MAKING "HUMAN OVERSIGHT" A TESTABLE SAFEGUARD

A disclosure standard for frontier AI risk reports and system cards

Megi Zimmermann · Independent policy brief · August 2026, revised 26 October 2026

About this brief. Independent policy brief by Megi Zimmermann, written in August 2026, with the U.S. policy section added on 1 October and revisions on 13 and 26 October 2026; not commissioned, published or adopted by any organization. The 26 October revision restores a qualifier that one quotation from Anthropic's August 2026 Risk Report had dropped, updates an EU AI Act provision amended in July 2026 and corrects a source title. The brief proposes a disclosure standard for oversight claims, applies it to two published system-card claims and ends with three U.S. policy options. Anthropic is the case because its Claude Opus 4.8 system card grades its own oversight claims; the standard is meant for any large frontier developer. It reads Anthropic documents as published between 14 August and 1 October 2026. The table's right-hand column is my analysis, not Anthropic's wording or a statement about its internal practices.

Executive Summary

Frontier AI safety materials cite human oversight as a safeguard. The phrase places a person in a process. It does not show whether that person has the information to see a problem, the independence to form a view, the authority to act or the attention left to notice.

Anthropic's engineering work illustrates why the presence of review cannot by itself establish effectiveness: in a controlled study published in August 2026, human reviewers caught a seeded dangerous command far less often than an automated classifier did. The governance question is whether its safety reports provide comparable evidence for the oversight claims supporting their risk conclusions. The Claude Opus 4.8 system card (May 2026) rests two risk pathways partly on detection by operators and users and grades that monitoring a Weak Mitigating Factor without publishing the basis for the grade. The August 2026 Risk Report revises those pathways but still leans partly on external oversight of unclear effectiveness.

Recommendation. Where human oversight is material to a risk conclusion, the report should include an Oversight Capability Statement covering six fields: decision rights; information, timing and independence; competence; workload; evidence of effectiveness; and security boundaries and residual uncertainty. A claim is material if the risk conclusion would change were the claim false.

Limitation and first step. A candid statement could show an adversary where review is thin; the brief proposes a redaction approach that draws on SB 53 and Anthropic's own scaling policy. The first step is a limited voluntary pilot: one material oversight claim per participating developer, judged by whether readers assess the claim better and at what cost.

The Published Claims

Four decades of automation research separate a reviewer's presence from a reviewer's capacity.[1] Anthropic's engineering has drawn the same distinction and measured it. Claude Code users approved roughly 93% of permission prompts, with attention declining as prompts accumulated, and the company responded architecturally: an operating-system sandbox that, in internal usage, cut permission prompts by 84%, then a classifier, auto mode, for what the sandbox could not contain.[2] In August it published a controlled study. Across 1,053 paid testers, with one permission prompt swapped mid-session for a clearly dangerous command, human review caught 13.6% and the classifier 89%; human detection fell from roughly 17% early in a session to roughly 5% after fifty or more prior prompts, while the classifier held flat.[3] The formal human-in-the-loop stayed intact while the substance of supervision weakened.

That study concerns a high-volume approval surface, not governance review, and it postdates the Claude Opus 4.8 system card (May 28, 2026), which is not faulted here for omitting it. The comparison concerns the

kind of evidence each document offers. The card carries at least three oversight claims a reader cannot check. The first is the apex of the risk-report process: after subject matter experts document their findings and internal feedback is solicited, "[t]hese materials are then shared with the Responsible Scaling Officer for the ultimate determination as to how the model's capabilities and propensities bear on the most recent Risk Report's analysis."[4] Authority is specified. What the reviewer sees, what happens when the determination and the experts diverge, and what evidence supports the judgment are not.

The second appears in two risk pathways that rest on detection by people who are not safety reviewers. On undermining R&D at other developers: "We don't have nearly as much ability to monitor deployments at third parties compared to within Anthropic. However, we still think steps toward significant harm would be fairly likely to be detected by their operators, through visible extended thinking text or through clumsy or inexplicable actions." The government-decision pathway substitutes "users of the model" and "recommendations."[5] The third is in the mitigations section: cybersecurity practitioners blocked by misuse probes "can apply for exemptions from these safeguards through our Cyber Verification Program," with the reader sent to support pages for the rest.[6]

Anthropic already grades the detection claim. In both pathways the monitoring factor ("Monitoring and related safeguards" in one, "Monitoring" in the other) is graded Weak, while limited deployments (pathway 7) and restricted affordances (pathway 8) are graded Moderate.[5] That is calibrated confidence, stated in public. The card does not publish the basis for the grade: no rubric converting evidence into a strength, no inter-rater reliability, no record of whether a grade changed between draft and final. A reader cannot tell whether Weak means the surface is rarely read, the operators are unidentified or nobody has tested it. Nor does the card say how the graded factors combine, so a reader cannot tell whether either pathway's conclusion would hold without the monitoring factor. Under the materiality test, settling that is the first thing a disclosure for this claim should do. Anthropic's August 2026 Risk Report changes the picture without closing the gap: it no longer cites operator detection for pathway 7, rests pathway 8 partly on external oversight, and no longer grades individual mitigating factors (see "Where to Start").[10] What follows would make a grade the company assigns, or the reasoning that replaces it, assessable by the people who rely on it.

Two Kinds of Review

Two regimes need two instruments. On high-volume approval surfaces (permission prompts, exemption triage, ticket queues), Anthropic's findings motivate testing whether similar degradation occurs; they do not establish the size of that effect outside the setting studied. Determinations under the scaling policy are the opposite regime: a handful per cycle, maximum salience, a named officer, written feedback solicited in advance. Vigilance decay is not the main risk there. The failure modes of low-volume, high-stakes review are anchoring on the first framing offered, deference to apparent consensus, and responsibility diffused across a group whose members each assume someone else is looking closely. The test should match the proposed failure mechanism. Where reviewers use model-generated analysis, comparable reviewers randomized to independent-first and AI-first conditions on matched cases, with judgment quality and the detection of consequential errors scored against a key fixed in advance, could test that analysis's influence on judgment. Whether dissent reaches someone able to act requires separate evidence about escalation and decision-making. Approval telemetry supplies neither. The fields below have to specify both regimes.

What the Frameworks Already Require

Regulators reached this problem from the other side. The EU AI Act requires that persons assigned oversight of a high-risk system be enabled to understand its capacities and limitations and "to remain aware of the possible tendency of automatically relying or over-relying on the output produced by a high-risk AI system (automation bias)," and its AI-literacy obligation has applied since February 2025, in a narrower form since July 2026. The NIST AI Risk Management Framework Playbook goes further on measurement. It suggests

that organizations "Define metrics for, and regularly assess, AI actor competency for effective system operation," and, under MEASURE 2.8, that they measure and document human oversight, maintain statistics on overrides and track policy exceptions and escalations.[7] The measurement guidance exists. What frontier-AI safety reports lack is a way to tie it to the specific oversight claims a risk conclusion depends on. This proposal translates existing measurement and accountability guidance into a claim-specific disclosure format: each material oversight claim is linked to an evidence owner, its operating conditions, the evidence behind it and its stated limits. The same fields could serve a regulator or standards body that asks developers to substantiate oversight claims.

The Aggregate Reading

One reading of the detection pathways deserves meeting head on, because it is probably the intended one. Neither claims that any single operator is vigilant. Both say harm would be "fairly likely to be detected," which is a statement about an aggregate: across enough operators and enough sessions, detection has to succeed only once. That is a reasonable argument, and it is the argument the Weak label is presumably grading. It is also specifiable, and specifying it is what would make the grade legible. Aggregate detection depends on how many opportunities arise before harm occurs, the probability of recognition and reporting at each opportunity, and whether failures are correlated; reports must also reach someone with authority to act. Additional exposures do not necessarily provide independent chances of detection. The opportunities can be checked against Anthropic's own documentation, which limits one of the two channels the claim names. On Opus 4.8, the model the card covers, extended thinking is off until the caller enables it, and its display defaults to omitted; when a caller opts in to a summary, that summary is produced by a different model which the thinking model never sees, and raw reasoning output requires contacting Anthropic's sales team.[8] These settings limit access to one of the signals named in the claim. Operators may still detect unusual actions or recommendations without seeing thinking output. A disclosure should distinguish these channels and explain what evidence supports detection through each. Shared visibility limits may create common blind spots, but their effect on aggregate detection requires evidence. Anthropic's permission-prompt data shows, on a different surface, how the chance of detection at each opportunity can fall as opportunities accumulate; a permission dialog is not a governance review, so those figures do not transfer. I found no published measurement of either term for operators reviewing extended thinking, and the number of observers who ever see that surface is not published. The aggregate reading does not escape this standard. It sets which fields the statement has to fill.

One Claim, Specified

The difference is easiest to see on real sentences. Both below are from the same system card. The right column is an analyst's reading, not a rewrite in the company's voice: it states what the published claim does not let an outside reader assess. The mechanisms it names may exist inside the company; the point is that the public disclosure does not show them. The examples identify oversight claims that warrant a materiality assessment. A full statement would be required where removing the claim changes the risk conclusion or the conditions under which deployment is judged acceptable. Where the public record does not establish that dependence, the first disclosure should clarify whether it exists. The first example concerns a claim the company has already graded weak.

AS PUBLISHED	**WHAT A READER CANNOT YET ASSESS** (analyst's reading, not Anthropic's wording)
"… steps toward significant harm would be fairly likely to be detected by their operators, through visible extended thinking text or through clumsy or inexplicable actions." *Opus 4.8 system card, §2.4.3.1, risk pathway 7. Graded Weak Mitigating Factor.*	The published claim does not specify the proportion of relevant deployments in which operators can inspect the cited signals, the rate at which observed anomalies are reported, or the escalation arrangements available to whoever receives a report. These mechanisms may exist, but the public disclosure does not allow an external reader to assess their contribution to risk reduction. The card does state, in the same paragraph, that Anthropic cannot monitor third-party deployments as it does its own. *Fields addressed:* information (the card names its own monitoring limitation). *Not shown:* reviewer, authority, competence, workload, evidence.
"… can apply for exemptions from these safeguards through our Cyber Verification Program." *Opus 4.8 system card, §3.2.*	The card states that an exemption route exists and refers readers to support pages for detail. Approval and rejection rates would describe how the process operates, but they would not establish whether it distinguishes legitimate applicants from misuse risks. Evidence of effectiveness should address the quality of eligibility checks, attempts to obtain access under false pretenses, monitoring after approval, and the ability to revoke access when circumstances change. The card itself describes none of these. *Fields addressed:* information, authority. *Not shown:* reviewer, competence, workload, evidence.

Both readings are less reassuring than the published sentences and more useful, and neither asks the company to disclose anything security requires withholding. They also show what a disclosure would need to contain to answer them.

Six Disclosures a Credible Claim Should Contain

1. **Decision rights and disagreement.** Name the decision under review, who owns it, what the reviewer can require or stop, and what happens when reviewers disagree.
2. **Information, timing, and independence.** Explain what evidence the reviewer sees, what may be unavailable, when review occurs, and whether an independent view is formed before exposure to model-generated framing.
3. **Competence and skill maintenance.** State the expertise required and how reviewers retain the ability to perform critical tasks when the system is wrong, unavailable, or confidently misleading.
4. **Attention, workload, and interface design.** Describe what prevents review from collapsing into high-volume approval, including time allocation, prompt frequency, escalation burden, and interface safeguards.
5. **Evidence, monitoring, and recovery.** Identify how the safeguard is tested in practice: seeded errors, anomaly detection, substantive disagreement, incident review, non-AI fallback, and recovery during system failure.
6. **Security boundaries and residual uncertainty.** Where details cannot be published, identify the category withheld, why disclosure would create risk, who can review the underlying evidence, and what remains uncertain.

Fit the minimum to the claim. Six fields at once invites deferral, so a first statement should cover the fields sufficient to assess the particular claim rather than a fixed subset. For third-party detection, that means information (who can see the relevant signals), reporting and response arrangements from the outset, since

the claim turns on them. Security boundaries cannot be postponed either, because adversarial disclosure is the main objection to the whole proposal (below). Decision rights, workload and evidence of effectiveness apply to almost every claim, and they have an advantage over self-assessment: a team can misjudge whether its reviewers are vigilant, while counts of items handled and records of seeded-error tests are open to external checking. What each field costs to produce is a question for a pilot to answer.

The Objection That Has to Be Answered First

An honest Oversight Capability Statement tells an adversary where review is thin, slow, or understaffed. That objection is correct, and a standard that ignores it will not be adopted by the teams that would have to apply it.

Existing redaction practices provide a starting point, not a complete solution. Version 3.4 of Anthropic's Responsible Scaling Policy requires public Risk Reports to indicate where material has been redacted,[9] and SB 53 asks a developer to describe the character and justification of a redaction (below). This proposal applies that approach to oversight claims, naming the category withheld and why disclosure would create risk, and adds two elements of its own: identify an authorized reviewer who can examine the underlying evidence, and state what remains uncertain. A reader then learns that a workload figure exists and is withheld, which is a different position from being unable to tell whether anyone measured it.

The case that matters is the unflattering one: the reviewer has ninety seconds, no independent evidence and no authority to block. That does not settle whether review contributes anything, because a reviewer without blocking power can still report or escalate. It means the contribution needs evidence. If none can be given, the safety case has to name the control that actually carries the risk. Anthropic has already shown this is publishable. Labeling a detection pathway a weak mitigating factor is a version of that move, made in public, in a system card. The Oversight Capability Statement asks only that the grade arrive with its reasons.

Where to Start

The August 2026 Risk Report shows where to begin. Its pathway assessments no longer cite operator detection for pathway 7, which now rests on much lower expected usage at other developers. Pathway 8 rests on "likely reduced affordances, narrower usage conditions, and external oversight," and the report expects users in other high-stakes applications, such as governments, "to apply their own monitoring and oversight mechanisms, though it isn't clear how effective these are likely to be." The same pattern appears in its biological-risk section, which expects Anthropic would learn of a prompt-injection attack "if even a few authorized users noticed such behavior and informed us of it."[10] Unlike the May card, these pathway assessments do not grade individual mitigating factors, so a reader now has less to calibrate against, not more. Specify the external-oversight claim first, in the Report itself rather than an appendix, naming which fields Anthropic can fill and which it cannot. One specified claim inside a document people already read establishes the format faster than a template circulated to teams who have not yet seen what the output looks like, and it produces the first internal argument about what the number actually is. Existing review records may reduce preparation costs; the pilot should measure the additional work required to organize and disclose them. The scaling policy requires internal reviewers to give feedback on each Risk Report and sends the report and that feedback to the CEO and the Responsible Scaling Officer for final review and approval. Version 3.4 also narrowed who receives the unredacted Risk Report, from all regular-clearance staff to at least 200 employees, which sets a minimum distribution requirement, though not the number of recipients or active reviewers. The published policy does not report feedback volume or disposition alongside that change.[9] A count of determinations where internal feedback was adverse, and the disposition of each, reports a file the process already produces.

Two things follow from that first specified claim. **Assign an evidence owner:** the team relying on the safeguard identifies the test, operational data, or assurance process supporting the public claim. **Re-open it**

when the workflow changes: higher autonomy, a new interface, a different reviewer population, or increased decision volume can invalidate the claim while the formal process is unchanged.

This recommendation should be tested rather than assumed. After two release cycles of published statements, its value should be judged through structured feedback from the readers it is meant to serve, including confidential review by evaluators, trustees and regulators: whether a statement changed a decision, whether it resolved an uncertainty, and what it cost to produce. If the answers show little use at real cost, the format is overhead and the gap lies somewhere other than the reporting. That is the standard this proposal asks of the claims it would cover.

What This Means for U.S. Policy

The convention does not need a new statute. California's Transparency in Frontier Artificial Intelligence Act (SB 53), signed in September 2025, already requires large frontier developers to publish a frontier AI framework that covers, among other things, their internal governance, their use of third-party assessment and how they manage risk from internal use of their models. Where a developer redacts that framework, it must "describe the character and justification of the redaction" to the extent the reason for redacting allows.[11] The statute says nothing about what a description of human oversight has to contain. That is the gap the Oversight Capability Statement fills, and its redaction approach draws on the provisions discussed above.

Federal policy currently runs through voluntary channels. Executive Order 14409 (June 2, 2026) directs a classified benchmarking process to assess the advanced cyber capabilities of AI models, and the design of a voluntary framework through which developers would give federal agencies access to covered frontier models up to 30 days before releasing them to other trusted partners. It states that nothing in that section authorizes a mandatory licensing, preclearance or permitting requirement.[12] The order establishes a capability-benchmarking and voluntary early-access framework, but does not itself specify a claim-level disclosure standard for human-oversight effectiveness. NIST's AI standards center is charged with guidelines "to measure and improve the security" of advanced systems.[13] Meanwhile Executive Order 14365 (December 11, 2025) directs a federal challenge to state AI laws and a proposal for national preemption; as of mid-September 2026 no preemption statute had been enacted.[14]

That uncertainty shapes the options:

A. **A voluntary NIST guideline on oversight claims.** It fits the administration's preference for voluntary standards and raises no preemption question. Its weakness is uptake: nothing obliges a developer to use it.

B. **A content standard for SB 53 frameworks.** California's Attorney General, or developers seeking a defensible framework, could treat a claim-specific Oversight Capability Statement as part of what an adequate governance description contains. The statutory obligation already applies to large frontier developers; reading this standard into it would be an interpretation rather than a requirement the statute states, and it is exposed to the preemption fight.

C. **An addition to the voluntary early-access framework.** As the EO 14409 framework is implemented, participating developers could file an Oversight Capability Statement for the safeguards relevant to the capabilities under review. This would be a new element of a voluntary program, scoped to those safeguards, not an existing requirement or a deployment-approval process. It uses a channel the order already creates, but it reaches only developers who choose to participate.

Option A is the right place to start, because it survives either outcome. Its first step would be a limited pilot covering one material oversight claim per participating developer, pairing a short public statement with confidential supporting evidence where necessary. The pilot would evaluate whether intended readers can better identify unsupported assumptions or change an assessment, and record preparation costs and

disclosure risks. Expert judgment gives the option context rather than validation: in a RAND Delphi study of 24 U.S. experts in AI technology and policy, conducted in January and February 2025, incentives to find and disclose risks and voluntary safety standards emerged as the two most promising legal and policy categories for shaping AI developers' incentives, while comprehensive federal action in the near term was judged unlikely.[15] The study assessed broad categories, not this standard. A NIST guideline is something a state framework can cite if state law stands, and something a federal framework can adopt if it preempts. It also gives allied evaluators a common format for comparing oversight claims across developers.

Conclusion

Human oversight can be a meaningful safeguard, but its presence is not evidence of its effectiveness. Where a risk conclusion depends on review, developers should specify what that review is meant to detect or prevent, what evidence supports its contribution, and what remains uncertain. The appropriate evidence will differ between repeated permission decisions and high-stakes governance determinations. A limited pilot should test whether claim-specific disclosures improve external assessments enough to justify their costs, while protecting sensitive operational details.

Selected Sources

1. Lisanne Bainbridge, "Ironies of Automation," *Automatica* 19, no. 6 (1983): 775 to 779; Raja Parasuraman and Victor Riley, "Humans and Automation: Use, Misuse, Disuse, Abuse," *Human Factors* 39, no. 2 (1997): 230 to 253; National Academies of Sciences, Engineering, and Medicine, *Human-AI Teaming: State-of-the-Art and Research Needs* (2022).
2. Anthropic, "How we contain Claude across products," engineering blog, May 25, 2026: "Our telemetry showed users approved roughly 93% of permission prompts." Anthropic, "Beyond permission prompts: making Claude Code more secure and autonomous," engineering blog, October 20, 2025: "In our internal usage, we've found that sandboxing safely reduces permission prompts by 84%." Read August 14, 2026.
3. Anthropic, "Auto mode is now the default in Claude Code for Pro, Max, and Team plans," Claude blog (claude.com), August 7, 2026; all figures in this note are from that post. Controlled study of 1,053 paid testers in a test environment, with a single permission prompt swapped mid-session for a clearly dangerous command: human review caught 13.6%, auto mode 89%. Human block rates of roughly 17% early in a session falling to roughly 5% after fifty or more prior prompts, with the classifier flat across session length. Among sessions flagged by the safety pipeline from May to June 2026, drawn from accounts opted in to data use, a harmful action the user had not explicitly asked for at production-level severity (7 or above on a 0 to 10 scale) in 6.3% of manually approved sessions against 2.4% of auto mode sessions. The post puts permission-prompt approval at 97%; the May post's telemetry figure is roughly 93%. Auto mode the default for new Pro, Max and Team sessions from August 14, 2026. Read August 14, 2026.
4. Anthropic, *System Card: Claude Opus 4.8*, May 28, 2026, §2.1.1 ("Risk Reports and updates to our risk assessments"). The sentence preceding the quotation reads "Once our subject matter experts document their findings and analysis with respect to model capabilities, we solicit internal feedback." Read August 14, 2026.
5. Same card, §2.4.3.1 and §2.4.3.2, risk pathways 7 (undermining R&D at other AI developers) and 8 (undermining decisions within major governments). Pathway 7 grades "Monitoring and related safeguards" a "Weak Mitigating Factor" and grades "Likely lack of propensity" and "Limited deployments" "Moderate"; pathway 8 grades "Monitoring" "Weak" and grades "Likely lack of propensity" and "Restricted affordances" "Moderate." Read August 14, 2026.
6. Same card, §3.2 (Mitigations): "Cybersecurity practitioners who have appropriate dual use cases and who are experiencing blocks from these probes can apply for exemptions from these safeguards through our Cyber Verification Program." The section adds that "More information covering the details of these safeguards can be found on our Support pages." Read August 14, 2026.
7. European Union, Artificial Intelligence Act, Article 14(4)(a) and (b), and Article 4 (AI literacy), applicable since February 2, 2025 and amended by Regulation (EU) 2026/1744 (the Digital Omnibus on AI, published July 24, 2026), which keeps the obligation to take literacy measures but no longer requires a specific level of literacy; amendment read October 26, 2026. National Institute of Standards and Technology, AI Risk Management Framework (AI RMF 1.0), NIST AI 100-1 (2023), and the AI RMF Playbook, MEASURE 1.1 (where the quoted suggested action appears) and MEASURE 2.8. I checked Articles 4, 14, and 50 and the Playbook MEASURE function; I did not read the Generative AI Profile (NIST AI 600-1) in full, so the claim is bounded to the documents named.
8. Claude Platform Docs, "Thinking" and "Thinking troubleshooting." On Claude Opus 4.8, 4.7, 4.6 and Sonnet 4.6, thinking is off until the caller sets it; the display parameter defaults to "omitted" on Opus 4.8 and 4.7 and to "summarized" on Opus 4.6 and Sonnet 4.6. "Summarization is processed by a different model from the one you target in your requests. The thinking model does not see the summarized output." Full thinking output requires contacting Anthropic sales. On Opus 5 thinking is on by default

and on Opus 5.5 always on; display still defaults to "omitted." Read October 1, 2026; the Opus 5 and Opus 5.5 lines re-checked October 26, 2026.

9. Anthropic, "Responsible Scaling Policy," version 3.4 and redline, effective July 8, 2026, and version 3.0, effective February 24, 2026. Version 3.4 requires public Risk Reports to indicate where material has been redacted, and "revises our requirement to share fully unredacted Risk Reports internally (we no longer require sharing with all regular-clearance Anthropic staff, and instead require sharing with at least 200 Anthropic employees)." Version 3.0 (§3.4) requires separate internal reviewers to provide comprehensive feedback on each Risk Report, usually alongside feedback from trusted external experts, with the report and feedback sent to the CEO and Responsible Scaling Officer for final review and approval. Version 3.4 was still the current version on September 30, 2026.

10. Anthropic, *Risk Report: August 2026* (redacted public version; coverage date July 15, 2026), §2.15 (pathways 7 and 8, p. 67), §2.11.4 (Claim 5.4.2, p. 62) and §4.5.5.4 (malicious access via prompt injection, pp. 144 to 145). Pathway 7: "we cannot rely on our own monitoring-based mitigations for this pathway." Read October 1, 2026; every quotation re-checked against the PDF October 26, 2026.

11. California Senate Bill 53, Transparency in Frontier Artificial Intelligence Act, Business and Professions Code §22757.12 (frontier AI framework contents and redaction). Text read September 30, 2026.

12. Executive Order 14409, "Promoting Advanced Artificial Intelligence Innovation and Security," June 2, 2026, §3(a) to (c), whitehouse.gov, read October 13, 2026; and Congressional Research Service, *Controlling Advanced Artificial Intelligence: Executive Order 14409 Explained*, IF13268, July 9, 2026, read September 30, 2026.

13. National Institute of Standards and Technology, Center for Advancing Innovation and Standards for Super Intelligence, mission page, nist.gov/caissi. Read September 30, 2026.

14. Executive Order 14365, "Ensuring a National Policy Framework for Artificial Intelligence," December 11, 2025. On enactment status: Center for Democracy and Technology, "2026 State and Federal AI Legislation Updates," updated September 11, 2026, which reports that no federal AI bills have passed in the current session. Read October 1, 2026.

15. Sasha Romanosky, Elina Treyger and Elie Alhajjar, *Legal and Policy Approaches to Mitigate Catastrophic Harms from AI*, RR-A4266-1 (RAND Center on AI, Security, and Technology, March 25, 2026). Delphi study of 24 U.S.-based experts; the two most promising approaches were "incentives to find and disclose risks" and "voluntary safety standards," and the likelihood of comprehensive federal measures in the near term (five to ten years) "was perceived as low." Expert judgments collected January to February 2025. Read October 1, 2026.